

CHAPTER 9.

An Act to provide for the forfeiture to His Majesty of double the amount received from the sale of goods at prices in excess of those allowed by the Food Controller.
[16th May 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Forfeiture of excess profits from over-charging for food.

1.—(1) Where a person has, after the passing of this Act, sold any goods at a price in excess of that allowed by or under any order made by the Food Controller in pursuance of the powers conferred on him by the Defence of the Realm Regulations, that person, in addition to any other penalty to which he may be liable, shall forfeit to His Majesty a sum equal to double the amount of such excess, and that sum shall be recoverable as a debt due to the Crown.

(2) In any proceedings in England or Ireland under this Act against any person in respect of any such sale as aforesaid, the court, if satisfied that there has been a breach by him of any order so made by the Food Controller, may order an account to be taken with respect to that sale, and with respect to any other sales by that person of any goods to which any such order applies, and may, upon such account being taken, direct the payment of double the amount of the excess thereby appearing to have been realised on the sales.

(3) In any proceedings in Scotland under this Act against any person in respect of any such sale as aforesaid, the court, if satisfied that there has been a breach by him of any order so made by the Food Controller, may proceed in like manner as if such proceedings were an action of count reckoning and payment concluding for production of an account of the aforesaid sale, and of any other sales by that person of any goods to which any such order applies, and for payment of double the amount of the excess thereby appearing to have been realised on the sales.

Short title.

2. This Act may be cited as the Defence of the Realm (Food Profits) Act, 1918.

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